

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUBC040333: MIGUEL FERNANDEZ, et al. vs GENERAL MOTORS, LLC., et al.
09/08/2026 in Department 21
Motion to Stay Proceedings**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs Miguel Fernandez and Lucina L Fernandez’s motion to stay proceedings

Tentative Ruling:

Plaintiffs’ motion to stay proceedings is DENIED.

Notice to be given by counsel for the Defendant within two (2) court days.

Discussion:

On September 5, 2025, GM filed a Demurrer to the First Amended Complaint, challenging all of the Song-Beverly causes of action. Plaintiff did not file an opposition, and did not appear for the hearing thereon. This Court sustained GM’s Demurrer to the Song-Beverly causes of action, denying leave for all but the implied warranty of merchantability cause of action. Plaintiff then filed a Second Amended Complaint containing only two causes of action: implied warranty of merchantability, and fraudulent inducement. Defendant filed its answer the Second Amended Complaint (following an unsuccessful MJOP), putting at issue those two causes of action – and nothing else.

The appellate issue in *Price v. General Motors* is this: is CCP §871.21(b) retroactive? This statute became effective on January 1, 2025, and provides in pertinent part as follows: “an action [for restitution or replacement of a motor vehicle] shall be commenced within one year after the expiration of the applicable express warranty [and] shall not be brought later than six years after the date of original delivery of the motor vehicle.” Two federal courts have decided it is not: *Perez v. General Motors LLC*, WL2466530 (C.D. Cal. 2026); *Galdamez v. FCA US LLC*, WL1047004 (C.D. Cal. 2026). Both courts recognized the general rule in California that

statutes are not to be given retroactive effect unless it is clear that the Legislature intended retroactivity. (See *Quarry v. Doe I* (2012) 53 Cal.4th 945, 955.) Even if the Legislature intended retroactivity, “legislation that shortens a limitations period is applied retroactively to preexisting causes of action, so long as parties are given a reasonable time [after the effective date] in which to sue.” (*Coachella Valley Mosquito & Vector Control Dist. v. Cal. Public Employee Relations Board* (2005) 35 Cal.4th 1072, 1091–1092.)

This lawsuit was filed *after* the effective date of the statute and presently includes a claim under Civil Code §1794 (implied warranty). Though not all such claims fall within the new §871.21, since the operative pleading here includes a *prayer* for restitution, this one does. (See Civil Code §871.20(b).) Thus, plaintiff’s first cause of action for breach of the implied warranty may be time-barred because the subject vehicle was delivered to plaintiff more than six years before the lawsuit was commenced. Defendant has moved for summary judgment on the limitations issue, albeit still relying on the generic four-year statute of limitations for warranty claims, not on the “six years from delivery” statute of limitations for claims seeking restitution or replacement of a motor vehicle.

Regardless of the scope of the summary judgment motion, and the fact that defendant is *not* asking for relief based on §871.20, plaintiff insists that it would be best for all to wait for the Court of Appeal to decide whether §871.20 is retroactive just in case. Not so. The first cause of action here is only potentially impacted by §871.20; plaintiff is free to drop the prayer for restitution and this implied warranty claim would default to the usual four-year statute of limitations, subject to the delayed-discovery rule. The decision in *Price* would then have no bearing on this case.

Waiting for a decision from the Second District Court of Appeal could be months, or even years, down the road. Neither the ends of justice, nor the needs for judicial efficiency, support a stay of this case for what could be years. As explained by the US Supreme Court in cases involving a stay of an order or judgment, a stay is only appropriate where the moving party is likely to prevail on the merits, the moving party will suffer irreparable injury without the stay, or where the public interest supports a stay. (*Nken v. Holder*, 556 U.S. 418, 434 (2009); in accord, *Reach Community Development v. United States Department of Homeland Security*, 174 F.4th 1143, 1146 (9th Cir. 2026).) The merits of the *Price* appeal presently have no impact on this case, there is no risk of harm to plaintiff since defendant is not asking for application of the statute, and there is no public interest in plaintiff’s unique dispute.

Plaintiff’s motion for a stay of proceedings is DENIED.